

Ashcombe Advisory Partners LLC

www.ashcombeadvisory.com

April 18, 2022

Sandra Mcdaniel
Director of Operations
Kirby-Taylor

Dear Ms. Mcdaniel:

This letter records the terms on which our firm will act for Kirby-Taylor on the media relations program we discussed, and it becomes our agreement once you have countersigned it. We have kept the language plain on purpose, so that it reads back to you as the conversation we had and not as a document to be decoded.

Please read it against that conversation as you go. If any part of it sits differently from how you recall our meeting, say so before you sign, and we will put it right so that the paper matches what we both intend.

What We Will Do

Our purpose is to help Kirby-Taylor present a clear and defensible account of itself to the reporters and outlets whose coverage shapes how the company is understood, and to prepare you to carry that account steadily through the announcements ahead. Our task is to see that what is already true of the company reaches the people who write about it, in language that holds up wherever it is quoted.

In practice that means a considered press list and an approach to outreach we settle with you, the talking points and background materials that put the company's position in plain terms, watchful monitoring of how each story travels, and our counsel whenever someone has to speak for the company on the record. It does not extend to how you run the business or to decisions that are properly yours; where our advice touches those, it stays advice and no more.

Our method is measured and, we hope, familiar in feel. We begin by learning how the company already speaks and how it is heard today, and we set down a small number of core messages in writing before we build anything on top of them.

From there we prepare the materials that carry those messages to the press, and we stay close through the moments that test them. When a story turns in a direction

none of us foresaw, and over four months one usually does, we come back to you and adjust the account with you rather than around you.

Your Team at the Firm

Laura Bradley will lead the program day to day and will be your first point of contact for anything of substance. She keeps a deliberately small book of engagements, so the one in front of her has her full attention, and she is the person to bring a decision to when it needs to move.

Kimberly Le will follow the coverage and shape the talking points, reading the landscape closely enough to tell you early how a given story is likely to run. Melissa Zimmerman will assemble the financial summaries and check every figure before it leaves us, so that no number goes out under our name that we have not stood behind.

I will keep a hand on the work myself, particularly on the announcements that carry the most weight, and nothing sensitive will reach the press without my having read it first. You are welcome to come to me directly at any point, though more often Laura Bradley will be the faster route to an answer.

Fees and Payment

Our fee for the program is \$46,000, covering the work described above through its expected close. We will invoice against that amount as the work proceeds, and each invoice is payable within thirty days of the date you receive it.

The fee covers our people and their time. It does not include out-of-pocket costs such as newswire distribution, travel, or third-party services, which we will agree with you before anything of consequence is incurred. If the shape of the work changes materially, we will raise the fee with you and settle it together before that work begins.

Term and Termination

The program begins April 28, 2022 and is expected to run for about four months. We will treat it as finished when the work is genuinely done, rather than simply when the calendar reaches a particular day.

Either of us may bring the engagement to a close on fourteen days' written notice. If you end it, you will owe us for work properly done up to that point and for costs already committed on your behalf, and nothing more.

Confidentiality

Everything we learn about Kirby-Taylor in the course of the program we will hold in confidence and use only for the purpose of the engagement. That obligation binds our whole team, survives the end of our work, and covers the fact of our involvement as much as its substance. We ask the same of you in respect of the methods and materials we share with you.

Limitation of Liability

We will carry out the work with the care and skill you are entitled to expect, and we stand behind it. We cannot, however, govern how reporters, editors, and the wider public will finally respond, and so our liability to you under this engagement is limited to the fees paid under it, save where the law does not permit such a limit.

Governing Law

This agreement is governed by the law of the state in which our firm is established, and any dispute arising under it will be resolved in that state's courts. Should any single provision be found unenforceable, the remainder of this letter stands unaffected.

Because the program will run largely by email, we will route what needs your sign-off through you, Sandra Mcdaniel, so that the record stays clear on both sides as the correspondence grows. Anything of real weight will still carry my own reading before it leaves us.

If this letter reflects our understanding, please sign both copies, keep one for your files, and return the other to me. Once it is back, Laura Bradley will write to arrange our first working session, and we will be glad to be working with you.

Julie Hill

Managing Partner

Date: April 18, 2022

Sandra Mcdaniel

Director of Operations, Kirby-Taylor

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